

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

v.

Case No.:

Hon.:

MOTION FOR EX PARTE TEMPORARY RESTRAINING ORDER

(MCR 3.310(B); Emergency Equitable Relief)

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, and respectfully moves this Honorable Court to issue an Ex Parte Temporary Restraining Order pursuant to MCR 3.310(B). In support of this Motion, Plaintiff states:

I. NO NOTICE CERTIFICATION *(MCR 3.310(B)(1)(b))*

Because immediate and irreparable harm will result before a hearing can be held, Plaintiff seeks ex parte relief. Plaintiff certifies that:

- A Verified Affidavit has been submitted under MCR 2.114(B);
- The facts support a finding of imminent injury;

III. LEGAL STANDARD — MCR 3.310(B) & EQUITABLE TEST

This request meets the standards set forth in MCR 3.310(B)(1):

- (a) Irreparable harm is imminent and ongoing;
- (b) Emergency relief is needed prior to hearing;
- (c) Verified Affidavit under MCR 2.114(B) is on file.

Plaintiff also satisfies the four-part equitable test set forth in '*Detroit Fire Fighters Ass'n v. City of Detroit*, 482 Mich. 18 (2008)'

1. Likelihood of Success on the Merits – Verified Complaint and Affidavit document fraud, retaliation, and licensing violations;
 2. Irreparable Harm – Plaintiff and minor child lack basic utilities and face imminent eviction;
 3. No Adequate Remedy at Law – Financial compensation cannot restore water, shelter, or safety;
 4. Public Interest – Preventing unauthorized evictions and protecting minors serves compelling policy interests.
-

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

A. Immediately issue an Ex Parte Temporary Restraining Order, enjoining Defendants from:

1. Initiating or continuing any eviction or possession proceeding;
2. Interfering with, restricting, or disconnecting utility services including water and electricity;
3. Contacting, harassing, or surveilling Plaintiff or his minor child;
4. Charging, collecting, or threatening to enforce any rent, fee, or charge unsupported by lawful lease and licensure;

B. Order immediate restoration of all essential utilities to Lot 17;

C. Enjoin any further adverse actions impacting Plaintiff's housing or property status;

D. Preserve the status quo pending a full hearing on a Motion for Preliminary Injunction under **MCR 3.310(A)**;

E. Set a hearing within 14 days as required by **MCR 3.310(B)(2)**;

F. Grant such other relief as is just and equitable.

V. POST-RELIEF NOTICE & SERVICE PLAN

Plaintiff will serve all Defendants with this Motion, the Verified Complaint, Affidavit, and any entered order via certified mail or personal service, and will file Proof of Service (MC 02) as required.

VI. CERTIFICATION UNDER MCR 3.310(B)

Pursuant to **MCR 3.310(B)(1)(b)**, I certify under penalty of perjury:

- That the factual basis for this Motion is verified and submitted;
- That irreparable harm is ongoing and justifies emergency action;
- That I will notify and serve Defendants immediately after any TRO is entered;
- That this request is made in good faith and not for improper purpose.

Dated: June 12, 2025

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors, Plaintiff In Pro Per

Lot 17, 1977 Whitehall Road

Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

MOTION FOR PRELIMINARY INJUNCTION

(MCR 3.310(A); Hearing-Based Injunctive Relief)

ANDREW J. PIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

Case No.:
Hon.

NOW COMES Plaintiff, Andrew J. Pigors, in pro per, and respectfully moves this Honorable Court to enter a Preliminary Injunction pursuant to MCR 3.310(A), and in support of this motion states as follows:

I. PRIOR ACTIONS AND PROCEDURAL HISTORY

1. Plaintiff has previously filed a Verified Complaint, a Verified Affidavit in Support of TRO, and a Motion for Ex Parte Temporary Restraining Order. Those filings were either granted by this Court or remain pending entry.
 2. All facts, exhibits, and legal authorities previously presented—including Exhibits A through G—are incorporated by reference as though fully stated herein.
 3. This Motion is brought pursuant to MCR 3.310(A)(1) and MCR 3.310(B)(3) to continue emergency protections, establish a hearing-based injunction, and preserve Plaintiff's constitutional and statutory rights through the pendency of this case.
-

II. FACTUAL BASIS FOR INJUNCTION

- The public interest demands enforcement of landlord licensure, protection of vulnerable tenants, and prevention of retaliatory evictions while housing cases remain pending.
-

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

A. Issue a Preliminary Injunction restraining Defendants from:

- Initiating or continuing any eviction proceedings;
- Disconnecting or interfering with utility services;
- Charging unauthorized rent increases, fees, or utility surcharges;
- Harassing, contacting, or retaliating against Plaintiff or his child;

B. Order restoration of utility services and, where applicable, physical re-possession of Plaintiff's residence;

C. Maintain the status quo until this case is adjudicated on the merits;

D. Schedule a full evidentiary hearing pursuant to MCR 3.310(B)(3) within 14 days of TRO issuance;

E. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

Dated: June 12, 2025

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
Email: andrewjpigors@gmail.com
Phone: 231-903-5690

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

VERIFIED AFFIDAVIT IN SUPPORT OF
EX PARTE TEMPORARY RESTRAINING ORDER AND PRELIMINARY
INJUNCTION

Andrew J. Pigors, Plaintiff

v.

**Shady Oaks Park MHP LLC, Homes of
America LLC, Alden Global Capital
LLC, Defendants**

Case No.: _____

Hon.: _____

I, Andrew J. Pigors, being duly sworn, depose and state under penalty of perjury pursuant to MCR 2.114(B) as follows:

1. PERSONAL OWNERSHIP + BACKGROUND

I am the legal owner and full-time resident of a manufactured home located at Lot 17, 1977 Whitehall Road, Muskegon, MI 49445, situated within Shady Oaks Park MHP.

My occupancy is lawful, continuous, and previously recognized by both the 60th District Court and MDHHS, which approved and paid rental assistance on my behalf through December 2024.

2. CHRONOLOGY OF HARM AND PROCEDURAL VIOLATIONS

- On March 26, 2024, I was coerced into signing a lease at Cricklewood MHP, a facility 35 minutes away, under the threat of immediate eviction.

I respectfully request that the Court:

- Enjoin all eviction actions, utility shutoffs, retaliatory billing, or enforcement of any unlawful lease terms;
- Order immediate restoration of water and essential utilities to my home;
- Prohibit misrepresentation of my tenancy status or arrears in court filings;
- Schedule a hearing on the Preliminary Injunction within 14 days, per MCR 3.310(B)(2);
- Allow amendment of pleadings, submission of additional exhibits, and presentation of evidence without obstruction;
- Require Plaintiff to file a Proof of Service (MC 02) upon entry of any TRO or preliminary order.

6. INCORPORATED EXHIBITS

Exhibit	Description
A	April/May Rent Ledgers showing inflated fees
B	Coerced lease signed at Cricklewood on March 26, 2024
C	Sewage leak photos and documentation (March–May 2025)
D	Rejected \$1,300.26 rent check
E	MDHHS proof of rent coverage through Dec. 2024
F	Shady Oaks LLC license revocation and registration lapse
G	EGLE Complaint filings and regulatory references

7. FEDERAL PRESERVATION NOTICE

This affidavit is submitted in anticipation of federal claims under 42 U.S.C. § 1983 and the Fourteenth Amendment of the U.S. Constitution.

It asserts violations committed under color of state law (*Monroe v. Pape*, 365 U.S. 167 (1961)) and seeks preservation of rights subject to further federal review.

This Affidavit further triggers Canon 3(C)(1)(a) and (c) due to the appearance of judicial bias, suppression of material evidence, and denial of procedural rights required under MCR 2.118, MCR 3.206(A), and MCR 2.119(F).

VERIFICATION

I declare under the laws of the State of Michigan that the foregoing is true and correct to the best of my knowledge, information, and belief.

Executed this 12th day of June, 2025

Signature: _____
Andrew J. Pigors
Plaintiff, In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
Email: andrewjpigors@gmail.com
Phone: (231) 903-5690

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. FIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

Case No.: _____

Hon.: _____

**PROPOSED ORDER FOR EX PARTE TEMPORARY RESTRAINING
ORDER**

(MCR 3.310(B); MCL 600.605; Emergency Equitable Relief)

At a session of said Court, held in the City of Muskegon, County of Muskegon, State of Michigan, on the date below:

PRESENT: Hon. _____,
Circuit Court Judge – 14th Judicial Circuit

FINDINGS OF FACT AND LEGAL BASIS

This matter came before the Court on Plaintiff's verified motion and affidavit, along with Exhibits A–G. The Court, being fully advised in the premises, finds:

1. Plaintiff is the lawful resident and homeowner of Lot 17, 1977 Whitehall Road, Muskegon, MI, located within Shady Oaks Park MHP.
2. Plaintiff submitted admissible, sworn documentation of:

4. Any documented suppression of evidence, misrepresentation by opposing parties, or judicial deviation from required procedure may constitute grounds for further relief under Canon 3(C)(1) and Article I §§ 2, 17 of the Michigan Constitution.
-

SO ORDERED.

Date Entered: _____

Time: _____

Hon. _____
Circuit Court Judge
14th Judicial Circuit – Muskegon County

Prepared by:
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No.: _____

Hon.: _____

PROPOSED ORDER GRANTING PRELIMINARY INJUNCTION

*AND SCHEDULING EVIDENTIARY HEARING
(MCR 3.310(A), (B); MCL 600.605)*

At a session of said Court held in the Muskegon County Courthouse
on the _____ day of _____, 2025.

PRESENT: HON. _____, Circuit Court Judge

**At a session of said Court held in the Muskegon County Courthouse
on the _____ day of _____, 2025.**

PRESENT: HON. _____, Circuit Court Judge

This matter having come before the Court on Plaintiff Andrew J. Pigors's Verified Motion for Preliminary Injunction and Ex Parte Temporary Restraining Order, pursuant to MCR 3.310(A) and MCR 3.310(B); the Court having reviewed the verified pleadings, affidavit, documentary exhibits, and Verified Complaint; and the Court being fully advised in the premises:

THE COURT HEREBY FINDS:

1. Plaintiff has demonstrated a substantial likelihood of success on the merits, based on verified claims of unlawful eviction tactics, regulatory violations, constructive eviction, retaliatory billing, and procedural obstruction.
 2. Plaintiff has established immediate and irreparable harm in the form of water shutoff, hazardous housing conditions, and ongoing threats to housing security and family welfare, with no adequate remedy at law.
 3. The balance of equities favors Plaintiff, and the public interest is served by preventing unlawful landlord conduct and protecting access to utilities and safe housing.
 4. Plaintiff has satisfied all requirements under MCR 3.310(A)(1)–(3) and MCR 3.310(B)(1)–(2), including:
 - Submission of a verified affidavit;
 - Certification of efforts to notify Defendants or sufficient cause why notice should not be required;
 - Demonstrated urgency for injunctive relief.
 5. The Court finds that no bond is required at this time pursuant to MCR 3.310(A)(2), due to Plaintiff's indigency and the public interest exception.
 6. This Order is issued without prejudice to Plaintiff's federal claims under 42 U.S.C. § 1983 and due process protections under *Goldberg v. Kelly*, 397 U.S. 254 (1970), and *Mathews v. Eldridge*, 424 U.S. 319 (1976). Canon 3(C)(1) judicial neutrality is preserved.
-

IT IS HEREBY ORDERED THAT:

A. PRELIMINARY INJUNCTION GRANTED

Defendants and all persons acting in concert with them are hereby RESTRAINED AND ENJOINED from:

- Initiating or continuing any eviction action, summary proceeding, or notice to quit against Plaintiff;

- Disconnecting, terminating, or restricting utility services, including water, sewer, or trash services, at Lot 17, 1977 Whitehall Road, Muskegon, MI 49445;
- Accessing Plaintiff's property or interfering with his tenancy without lawful process or court order;
- Demanding or collecting inflated rent, unauthorized utility charges, or other fees inconsistent with applicable leases, laws, or court orders;
- Using the name "Shady Oaks Park MHP LLC" in communications, filings, or billing if said entity is not properly registered and licensed to operate within the State of Michigan.

Defendants shall restore all essential utilities and services to the subject premises within **twenty-four (24) hours** of service of this Order.

Defendants shall preserve and make available for inspection:

- (1) Rent ledgers;
- (2) Utility bills;
- (3) Eviction notices or ledgers;
- (4) Internal communications regarding Plaintiff's tenancy.

B. EVIDENTIARY HEARING SCHEDULED

Pursuant to MCR 3.310(B)(2), the Court shall conduct an evidentiary hearing to determine whether this Preliminary Injunction shall remain in effect pending resolution of the underlying complaint.

- **Date of Hearing:** _____
 - **Time:** _____
 - **Location:** 14th Circuit Court, Muskegon County Courthouse
 - **Judicial Officer:** _____
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C. SERVICE AND NOTICE

Plaintiff shall serve a true and correct copy of this Order, together with the Verified Complaint, Affidavit, Motion, and supporting exhibits, on all named Defendants by:

- Personal service; or
- Certified mail with restricted delivery, return receipt requested.

Plaintiff shall file Proof of Service using **MC 02** with the Court no later than **seven (7) days** after entry of this Order. Failure to complete service may result in sua sponte review or modification of relief granted herein.

IT IS SO ORDERED.

Dated: _____

Hon. _____
Circuit Court Judge

Prepared by Andrew J. Pigors

1977 Whitehall Rd Lot 17

Muskegon MI 49445

andrewjpigors@gmail.com 231-903-5690